



Appeal Decision

Site visit made on 19 August 2026

by S Hubbard BSc(Hons) MA MRTPI

an Inspector appointed by the Secretary of State

Decision date: 11 September 2026

Appeal Ref: 6010877

27 Rose Terrace, Woodford NN14 4HT

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by L & W UK against the decision of North Northamptonshire Council.
 - The application Ref is 25/02122/FUL.
 - The development proposed is described as: Retrospective application for the erection of light industrial and storage business unit.
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Decision

1. The appeal is allowed and planning permission is granted for the erection of a light industrial and storage business unit at 27 Rose Terrace, Woodford NN14 4HT in accordance with the terms of the application, Ref 25/02122/FUL, subject to the conditions in the attached schedule.

Preliminary Matters

2. The application form states that the development was completed in October 2025. I observed on my site visit that the development was complete and in use and appears to accord with the plans before me. I have therefore considered the appeal on the basis that the development has already taken place. The description of development in the banner heading above, which is taken from the application form, includes terms not relating to an act of development. I have therefore removed the words 'Retrospective application' from the description of development in the formal decision above.
3. On the 17 August 2026, the Government published a revised National Planning Policy Framework. The parties were given an opportunity to comment on the implications of the revised Framework for the appeal, and I have taken those comments into account in reaching my decision. Therefore, references to the Framework are to the August 2026 version.
4. The appellant submitted a plan showing the parking provision on the site with the appeal. The plan does not change what has been built but rather clarifies where the parking is provided. The Council and interested parties have had an opportunity to make comment on the plan. Therefore, I consider there would be no procedural unfairness in accepting the plan.

Main Issues

5. The main issues are the effect of the development on:
- i) Highway safety with regard to the provision of off-street parking;
 - ii) The living conditions of the occupants of neighbouring properties, with particular reference to daylight/sunlight and outlook; and
 - iii) The character and appearance of the area.

Reasons

Parking and Highway Safety

6. Rose Terrace is a cul-de-sac which serves a number of residential properties alongside the appeal site. Not all of the residential properties benefit from off-street parking and therefore a number of households are reliant on on-street parking. The parking plan shows space for 6 cars to be parked on the appeal site to serve the business.
7. Policy 8 of the North Northamptonshire Joint Core Strategy 2011-2031(July 2016) (JCS) states that development should ensure that there is satisfactory provision of parking in accordance with adopted standards. Although part of the building may be used for storage, the application form states that is for a building under use class E(g)(iii) of the Town and Country Planning (Use Classes) Order 1987 (as amended). The Northamptonshire Parking Standards (September 2016) were published before the creation of use class E(g)(iii) and the equivalent class was B1. These standards state that 1 space per 30sqm of B1 gross floor area should be provided.
8. There is a dispute between the Council and the appellant as to what the floor area of the appeal building and the existing office building is. The appellant is of the view that the 40sqm comprising the canopy of the development should be excluded. Given the area under the canopy has no apparent use other than for manoeuvring, I am of the view that the area of the canopy should be discounted from the floor area. In terms of the office floor area, the appellant states that this is 100sqm, whereas the Council state the floor area is 130sqm. However, even if I take the appellant's figures the combined floor area would be 260sqm generating a requirement for at least 8 spaces which is more than what is provided for on-site. Accordingly, the proposal would be in conflict with Policy 8 of the JCS in terms of parking provision.
9. Regarding the on-site parking, at the time of my visit, I observed a dropped kerb in front of the building where the five spaces are provided. There were no obstructions on these spaces. The sixth space within the yard was obstructed by storage units. However, this could be resolved by a condition requiring the spaces to be kept clear of obstructions.
10. The appellant states that at present the workforce comprises only six employees, three of which live in the village. However, clearly this could change over time and therefore an increase in parking demand associated with the scale of the building cannot be ruled out.
11. Given the above there is a risk that parking could be displaced on to the street. At the time of my visit there were a number of spaces available on the street and in the vicinity. However, this was just a snapshot in time, and photographs have been

submitted by the Council and interested parties showing higher levels of on-street parking with evidence of double parking at the turning head.

12. Although the evidence indicates that at times there is a high level of on-street parking in the vicinity of the appeal site, there is no compelling evidence that this is leading to issues with highway safety or difficulties for emergency vehicles to access properties along the street.
13. The street does not have a significant level of vehicular or pedestrian traffic and has slow speeds. Furthermore, there is no compelling evidence that the development has resulted in an intensification of the use of the site which has led to more vehicular movements, including delivery vehicles. Whilst the lack of parking, coupled with on-road deliveries may cause an inconvenience at times to neighbouring residents, I do not consider the lack of parking to be creating an unacceptable impact on highway safety.
14. Whilst the proposal would conflict with Policy 8 of the JCS in terms of parking provision, I have found that based on the evidence before me, the lack of provision compared to the parking standards would not be harmful to highway safety. As such the lack of harm in this instance outweighs the conflict with Policy 8.

Living Conditions

15. The development adjoins No. 4 Rose Paddock along part of their rear garden. The development has resulted in a change to the outlook from the rear windows of the property and the wall of the appeal building abutting the garden is utilitarian rather than domestic in appearance. However, its distance from the rear windows, its position to the rear of the garage and the lack of other surrounding development around the large rear garden means it does not have an overbearing effect and does not result in an unacceptable impact on the living conditions of the occupants in terms of outlook. For the same reasons the development does not reduce daylight to the rear rooms of the house to an unacceptable degree.
16. The position of the development, approximately north-east of the dwelling means that it only reduces sunlight to the dwelling at certain times of the year for a short period in the morning. Whilst the shading to the garden will be for a longer period, this only affects parts of what is a relatively large garden. As such the development does not result in an unacceptable impact on the living conditions of the occupants in terms of provision of sunlight.
17. Whilst the development is in close proximity to No. 25 Rose Terrace, the development only has a marginal impact on outlook from the rear windows given the proximity of the existing car port to the rear of the property which occupies most of the outlook from the rear ground floor windows. The low-level development surrounding the rest of the rear of the property, means that first floor rear windows will still have an acceptable outlook.
18. In conclusion, the development does not have an unacceptable impact on living conditions and therefore accords with Policy 8 of the JCS in this regard, which amongst other matters, requires development to not have an unacceptable impact on the amenities of neighbouring properties by reason of noise, vibration, smell, light or other pollution, loss of light or overlooking.

Character and Appearance

19. Rose Terrace is predominantly characterised by a mixture of residential properties of differing types and sizes. There is no particular coherence to the character except that it is predominantly residential. The appeal site is the only light industrial business use on the street. However, as an existing use this forms part of the pre-existing character of the area.
20. Despite the building's height and its large and bulky appearance, its set back from the road means it does not feature prominently in the street scene. Given the utilitarian character of the office block at the front of the site, the building does not look wholly out of character with its surroundings. The colour and shape of the building gives it an appearance not dissimilar to a modern farm building which would not be typically out of place on the edge of a village. When viewed from the surrounding rights of way in the countryside, the building blends well with the surrounding vegetation. Whilst the appearance of the building from No.4 Rose Paddock is more stark, this is a private view, and as I have concluded above, the building does not have an unacceptable impact on the outlook from this property.
21. In conclusion, the development does not harm the character and appearance of the area and therefore accords with Policy 8 of the JCS in this regard, which amongst other matters requires development to respond to the immediate and wider context and local character of the site. The development would also accord with Policy EN11 of the East Northamptonshire Local Plan Part 2 2011-2031(2021) which requires development proposals to relate well to and where possible enhance the surrounding environment.

Other Matters

22. Policy DM8 of the National Planning Policy Framework (the Framework) states that if it is concluded that based on evidence that unauthorised development was intentional, that fact should be given substantial weight in considering whether to grant planning permission. The appellant asserts that as the development is what they considered to be a direct replacement for what was previously there, they did not believe there was a need to obtain planning permission. Whilst the appellant acknowledged that the replacement building is larger than the structure it replaced, I have no compelling evidence that the development was undertaken with knowledge that planning permission was required. Accordingly, the provisions of Policy DM8 do not weigh against the development.

Conditions

23. I have assessed the Council's suggested conditions as to whether they satisfy the tests identified in Policy DM6 of the National Planning Policy Framework (the Framework). In order to satisfy those tests, minor editing of the wording of some of those conditions is necessary for clarity, consistency and enforceability.
24. It is not necessary for the time-limit condition to be applied as the development is already complete. A condition listing the approved plans is also unnecessary in this case because the appeal relates solely to the retention of the building as built and there is no uncertainty in this regard as to what has been approved.
25. Conditions requiring the building to only be used for light industrial and storage use, restricting the operating hours of business within the building and requiring

the approval of details before installation of floodlights are necessary to protect the living conditions of the occupants of neighbouring properties.

26. A condition is necessary to ensure the provision of on-site parking is retained and is free from obstruction. Although I have found no harm to highway safety from the development, this is on the basis that on-site parking is provided on site as proposed. If parking spaces were to be removed, it may not be possible to come to the same conclusion and harm could be experienced to living conditions of neighbouring occupants due to the availability of parking near their residence. Although the Parking Plan provides confidence that space for six cars can be accommodated on the site, it is not detailed enough for the operation of a condition, therefore, further details of parking will need to be agreed by the local planning authority.
27. A condition is also necessary for the provision of cycle parking in accordance with details to be agreed by the local planning authority. There is a strict timetable for compliance with these conditions because permission is being granted retrospectively and the building is already occupied. As such it is not possible to use a negatively worded condition to secure these matters prior to development taking place or commencement of the use.
28. A condition restricting the storage of goods, materials skips, containers or other similar items is not necessary, as the condition on the provision of parking referred to above will keep the area at the front of the premises largely free from such items so not to cause an impact on the character and appearance of the area. A condition relating to the control of noise is not necessary as the use of the site is not changing and evidence from the Council's Environmental Health consultee is that there have been no records of detriment received with regard to noise associated with the light industrial use of the site. Furthermore, the safeguards on operational times within the building as per Condition 2 will ensure living conditions of the neighbouring occupants are not unacceptably affected by the development.
29. Conditions limiting timeframes for deliveries and waste collection are not necessary as these relate to the use of the site as a whole, which is pre-existing. There is no evidence that the new building subject to this appeal will significantly increase the frequency of deliveries or waste collection. A condition requiring a landscaping scheme is also not necessary, as I have found no harm to the character and appearance of the area and there is limited space on the site to implement landscaping.

Planning Balance and Conclusion

30. Policy S3 of the Framework states that decisions on development proposals should apply a presumption in favour of sustainable development. As the site is within the settlement of Woodford, Policy S3 advises that Policy S4 applies.
31. Policy S4 of the Framework states that development within settlements should be approved unless the benefits of doing so would be substantially outweighed by any adverse effects, when assessed against the national decision-making policies in this Framework.
32. In line with Policy E2 of the Framework, substantial weight is given to the benefits of the scheme in allowing the business to invest, expand and adapt. Although the

development would not necessarily increase the number of employees, it would allow the business to adapt to become more resilient

33. I have found no harms as a result of the development which would conflict with the national decision making policies in the Framework. As such the benefits of the development are not substantially outweighed by the adverse effects when assessed against the national decision making policies of the Framework.
34. The benefits of the scheme and the provisions of the Framework mean that, although the development conflicts with the development plan, the material considerations indicate that a decision should be made other than in accordance with it. Therefore, the appeal should be allowed.

S Hubbard

INSPECTOR

Schedule of Conditions

- 1) The building hereby permitted shall be restricted to light industrial and storage use only and for no other purpose.
- 2) The hours of operation of the business within the building hereby permitted shall be restricted to 8.00am to 6.00pm Mondays to Fridays, 9.00am to 1.00pm Saturdays and Bank Holidays, and at no other time.
- 3) Within six months of the date of this decision, vehicle parking spaces shall be marked out and be retained thereafter, free from obstructions and for the parking of vehicles only, in accordance with details that shall be first approved in writing by the Local Planning Authority.
- 4) Within six months of the date of this decision, cycle parking facilities shall be provided and be retained thereafter in accordance with details that shall be first approved in writing by the Local Planning Authority
- 5) No floodlights shall be erected on the development until a scheme has been submitted to and approved in writing by the Local Planning Authority which shall include:
 - i) Details of the level of illumination;
 - ii) Angling and cowlings of the flood lighting;
 - iii) An assessment of the impact of the lighting on the vertical facades of sensitive properties; and
 - iv) Proposed mitigation measures to reduce the impact of the flood lighting.The scheme shall be in accordance with the Institution of Lighting Professionals Guidance Note GN01/21 The Reduction of Obtrusive Light or an equivalent specification agreed by the local planning authority should this guidance be withdrawn. Any floodlighting erected shall thereafter be operated and maintained in accordance with the approved scheme at all times.